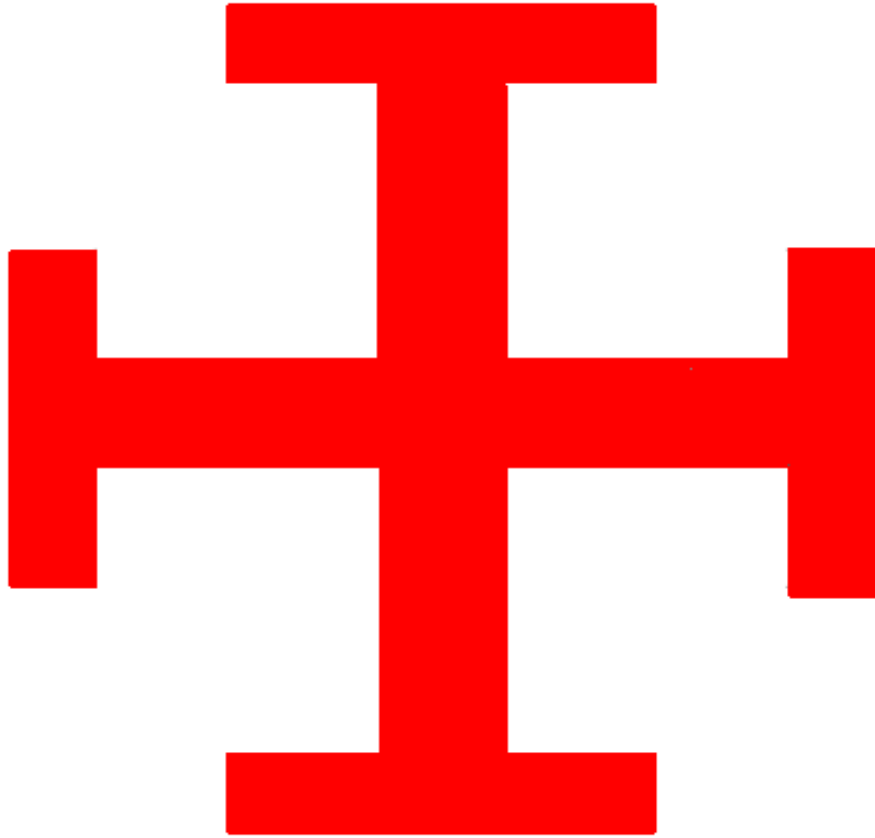




Deo Duce et Comitante Ferro

Bylaws

of the

Utah Scots Guard

*Ancient & Accepted Scottish Rite of Freemasonry
Southern Jurisdiction for the United States of America
Orient of Utah*

Revision Control

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<i>05/20/2008</i>	<i>02</i>	<i>Revised</i>	<i>L. Fibbitts</i>	<i>Curtis N. Lancaster J. Liley R. Wolfarth</i>

1. Constitution

- 1.1. Constituted - The Charter of the Utah Scots Guard is granted on *September 08, 2006* by the Lieutenant Grand Commander of the Ancient and Accepted Scottish Rite of Freemasonry, Southern Jurisdiction of the United States of America, and Sovereign Grand Inspector General for the Utah Orient, Illustrious Curtis N. Lancaster, 33 °.
- 1.2. Authority - The Utah Scots Guard is authorized to enlist, commission and advance Guardsmen:
 - 01 To support the Scottish Rite Learning Centers of Utah,
 - 02 To assist in the Scottish Rite Reunions in the Orient of Utah,
 - 03 To support other Scottish Rite Meetings and Ceremonies in the Orient of Utah, and
 - 04 To complete such tasks and missions given it, by the Sovereign Grand Inspector General, the Chairman of the Membership Committee, and this charter.
- 1.3. Documentation
 - 01 The Bylaws of this organization must be signed by the Permanent General and the Most Worshipful Grand Master, Free and Accepted Masons of Utah.
 - 02 These Bylaws may be amended at any time by consensus of the Commandant and Permanent General, with the acceptance of the Most Worshipful Grand Master, Free and Accepted Masons of Utah.

2. Mission

- 2.1. Provide Service, Support, and Assistance to the Scottish Rite Learning Centers of Utah in any manner as described or requested by the Scottish Rite Learning Centers, and the abilities of the Scots Guard permit.
- 2.2. Provide Ceremonial Escorts for all Scottish Rite Dignitaries with the Orient of Utah.
- 2.3. In coordination with the Class Committee, assist with the registration and direction of the Class at Reunions.
- 2.4. In coordination with the Director of the Work, provide Ceremonial Tylers for Reunions.
- 2.5. Assist in arranging furniture of the Lodge Room for Scottish Rite Business Meetings, and act as Greeters for Business Meetings.
- 2.6. Provide an Honor Guard and Flag Ceremony for Scottish Rite Business Meetings, Reunions and other such occasions as requested and approved.
- 2.7. To build leaders and leadership skills through hands-on experience and increasing levels of responsibility.
- 2.8. Perform other such duties as directed by the Permanent General, Chairman of the Membership Committee, or Commandant.

3. Components of the Scots Guard

- 3.1. Utah Scots Guard, for the Orient of Utah, will be known as the Battalion of Scots Guard (The Battalion.)
- 3.2. The Battalion is commanded by the Commandant of the Utah Scots Guard, who has full executive and command authority over all members and bodies of The Battalion.
- 3.3. The Commandant reports directly to the Chairman of the Membership Committee for the Orient of Utah, and indirectly to the Permanent General of the Utah Scots Guard.

4. Customs and Courtesies

4.1. Saluting

- 01 While in uniform, all members of the Utah Scots Guard are required to render a proper salute to all Officers of the Utah Scots Guard, any Sovereign Grand Inspector General, Visiting Dignitaries, Offices and Ensigns that Require a Salute, and all Grand Masters of Freemasons.

4.2. Colors & Standards

- 01 The Colors of The Battalion are currently undefined.

4.3. Mottos and Slogan

- 01 The Motto for The Battalion shall be, *Deo Duce et Comitant Ferro*, which means, With God my Guide, the Sword my Companion.

4.4. Time

- 01 The start of the calendar year for The Battalion coincides with the Vernal Equinox, March 21.
- 02 The Battalion will utilize a 24-hour clock.
- 03 The official clock of the Utah Scots Guard is always 10-minutes ahead of the standard local time, i.e. if a Formation is scheduled for 1700 hours, it will really occur at 1650 hours.

4.5. Voting

- 01 All voting, for all bodies of Guardsmen, is by show of hands.
- 02 Secret Ballot is expressly forbidden.

5. Membership, Rank Structure and Advancement

5.1. Entering into The Battalion

- o1 Membership in the Utah Scots Guard is by Invitation Only, though one may make their desire to become a member known without fear of negative outcome.
- o2 True application for membership shall come in the form of dedicated service to Freemasonry, the Ancient and Accepted Scottish Rite, and to all mankind.
- o3 Except where otherwise outlined in this document for Commissioned Officers, all Masters of the Royal Secret entering into this body will be enlisted, and start at the lowest enlisted rank.
- o4 The process to become a member follows:
 - Any Guardsman may recommend a Master of the Royal Secret for admission. Recommendations must be orally at Formation or by writing to be read at Formation.
 - An election requires that all Temporary Officers of The Battalion, and one third (1/3) Battalion personnel within 25-miles of the Formation, be present for it to be considered valid, and binding.
 - The Formation for Election must be communicated to all Guardsmen at least thirty (30) days in advance of the Formation.
 - A negative outcome requires no communication back to the Recommender, or the Brother. Nor does it permanently bar the Brother from the Battalion or the Company.
 - A successful outcome requires a report to the Company, and the Brother.
 - The newly elected Brother will report for duty at a Formation to be invested, take his Oath of Service, and sign the Bylaws making his a fully empowered Guardsman.

5.2. Retired Personnel

- o1 Officers and Staff Non-Commissioned Officers who have honorably discharged their duties, or have retired from service, may continue to use their Rank/Title as desired and may, at proper occasion, wear their uniform.
- o2 Retired personnel may not attend Formations, unless especially invited, and are never accorded a vote, and in the case of officers, a salute.

5.3. Discharges

- 01 Enlisted personnel who have fulfilled their duties, and have requested to demit from the organization with a favorable opinion of this organization; are to be considered honorably discharged.
- 02 Commissioned Officers who have fulfilled their duties, and have request not to seek re-Commission, or have had their Commissions collected, and maintain a favorable opinion of this organization are to be considered honorably discharged.
- 03 Any Guardsman who is found guilty of a Masonic offense in a Blue Lodge or in the Scottish Rite is considered dishonorably discharged.
- 04 Enlisted personnel who have fulfilled their duties in a less than satisfactory manner, or who have come to an unfavorable opinion of this organization and have chosen to demit are considered discharged.
- 05 Commissioned Officers who demit from this organization prior to the terms of their Commission (Resigning their Commission) are to be considered discharged.

5.4. Commissioned Membership

- 01 Commissioned personnel shall be first, a Master of the Royal Secret in Good Standing in the Orient of Utah, second have sworn allegiance to the Supreme Council, the AASR, the Scots Guard, and the principles contained herein.
- 02 Officers receive their commission from the Permanent General. Commissions are for a term of two years, after which time the Commissions may be renewed.
- 03 Commissioned personnel will be known as Officers or Commissioned Officers.
- 04 Commissions are issued at the beginning of the Annual Term for the Battalion.
- 05 Generally, the Commandant will make recommendations for Commissioning to the Permanent General.
- 06 The decision to Commission a Master of the Royal Secret is the prerogative of the Permanent General, understanding that worthiness for Commission must be balanced by a proven ability to lead, organize and motivate groups of people, and a demonstrated willingness to work with others to the completion of a goal.
- 07 Resignation of a Commission forfeits all rights of Guardsmen, and prohibits future reenlistment or commissioned membership except by recommendation of the Permanent General, ratified by a two-thirds (2/3) majority of all Officers.
- 08 Commissions are collected by the issuing authority if a Master of the Royal Secret is Invested Knight Commander of the Court of Honor, or when an Officer has completed his Commission (i.e. the Commission expires), and has chosen to retire by not seeking to renew his Commission.

09 Officers whose Commissions have been collected are not eligible for advancement or participation in the Ceremonies or Meetings of the Utah Scots Guard, and are no longer entitled to wear Uniforms or Decorations of the Scots Guard, unless otherwise directed.

10 Retired Officers may retain Rank/Title, and are to be greeted and addressed appropriately by all members of the Utah Scots Guard. Retired Officers do not rate a salute, and are not authorized to salute another Officer, General, or dignitary, or to return any salute.

5.5. Utah Scots Guard Officer Structure

01 Commissioned Officers (Officers), of the Utah Scots Guard are categorized into two grades; Company Grade Officers, and General Grade Officers (progressively from lowest to highest).

02 Company Grade Officers

- Second Lieutenant – One (1) Gold Bar
- First Lieutenant – One (1) Silver Bar
- Captain – Two (2) Connecting Silver Bars

03 General Grade Officers and Billets

- Commandant of the Battalion – Gold Oak Leaf
- Chairman of the Membership Committee – Silver Oak Leaf
- Permanent General – One (1) Silver Star

5.6. Utah Scots Guard Officer Advancement

Officer Advancement and Maintenance Requirement Table

Rank	Service Hours (Maintain)	Service Hours (Advance)	Reunions – Annual (Maintain)	Reunions- Total (Advance)
2 nd Lieutenant	25	50	2	3
1 st Lieutenant	25	50	2	4
Captain	25	50	2	5

- 01 Officer advancement is measured in facilitation, facilitation simply enabling mission accomplishment. Facilitation is measured in hours. Facilitation hours are the hours used to complete a mission. Example, a Second Lieutenant may cause nine (9) Guardsmen to work nine (9) hours. The total is eighty-one (81) facilitation hours.
- 02 To maintain rank, an Officer is required to certain yearly requirements.
- 03 Advancement requirements are not cumulative. The fourteen (14) hours of facilitation for a Lieutenant do not count toward the sixteen (16) hours required for a Captain to advance.
- 04 Officers advance through annual review, conducted by the Commandant. Commanding Officers will present to the Commandant the annual review for all Officers serving under their individual command.
- 05 Should the Commandant have his Commission collected, his successor will be chosen from the pool of Captains who have completed the necessary requirements for advancement. Captain advancement requirements are considered as requirements for eligibility to be considered amongst the pool of Guardsmen to succeed the current Commandant.
- 06 Except where duly authorized by the current Commandant or Permanent General, the Ceremony of Commissioning occurs the night before the Ceremony of Remembrance and Renewal.

5.7. Waivers or Changes

- 01 Yearly requirements can be waived or reduced by the Commandant, if it is determined that there is a lack of resources necessary to meet the requirements or as extenuating circumstance may dictate.

5.8. Battlefield Commissions and Advancement

- 01 The Commandant is authorized to issue Commissions to personnel, at his discretion, in order to facilitate mission accomplishment.
- 02 Any advancement through the Officer Ranks not sanctioned through the normal process outlined in this document is considered a Battlefield Commission.
- 03 Such advancements are considered temporary, expiring at the commencement of the next annual term.
- 04 Battlefield Commissions extend all the powers, rights and responsibilities of a Commissioned Rank.
- 05 Battlefield Commissioned Officers are not eligible for advancement except by Battlefield Commission.
- 06 Battlefield Commissions may be given consecutively for an indefinite number of terms.
- 07 Should retirement occur during the period of a Battlefield Commission, the Retiring Officer is considered to have been fully commissioned to his rank.

- o8 Holding a Battlefield Commission does not guarantee Commissioned Status at a future date.

5.9. Officer Population Ratio

- o1 For every five (5) Enlisted Members, one (1) Lieutenant of any grade.
- o2 For every two (2) Lieutenants, one (1) Captain.
- o3 Actively Commissioned Officers are given preference to fill population allotments, before new Commissions are issued.
- o4 Battlefield Commissions do not ensure preference, or deference, when filling population allotments.

5.10. Enlisted to Commissioned

- o1 At the prerogative of the proper agency, Enlisted Members may receive Commissions and move to the ranks of Commissioned Officers.
- o2 Reunion and service hours accumulated as an Enlisted Member are not counted toward the requirements for Commissioned Officer advancement.

5.11. Enlisted Membership

- o1 Enlisted personnel shall be first, a Master of the Royal Secret in Good Standing in the Orient of Utah, second have sworn allegiance to the Supreme Council, the AASR, the Scots Guard, and the principles contained herein.
- o2 A Master of the Royal Secret shall be considered eligible for enlistment in the Utah Scots Guard after he has been duly observed, and the members of the Company he will be joining, have voted to receive him.
- o3 No Master of the Royal Secret can be considered eligible if he is not listed in Good Standing.
- o4 Enlistments are completely voluntary and may be surrendered at any time.
- o5 Masters of the Royal Secret who have previously surrendered their enlistment, may become enlisted again, by unanimous consensus of the Commanding Officer, Executive Officer and Adjutant Officer of the Company.
- o6 All Officers outrank the Enlisted Membership, regardless of Time Service or in Grade.

5.12. Utah Scots Guard Enlisted Rank Structure

- o1 Enlisted personnel shall be divided into three classifications; Enlisted, Enlisted Non-Commissioned Officers, and Enlisted Staff Non-Commissioned Officers (progressively from lowest to highest rank.)
- o2 Enlisted
 - Private

o3 Enlisted Non-Commissioned Officers

- Sergeant

o4 Staff Non-Commissioned Officers

- Master Sergeant
- Sergeant Major

5.13. Utah Scots Guard Enlisted Advancement

Enlisted Advancement Table

Rank	Total Service Hours	Total Reunions
Sergeant	15	2
Master Sergeant	25	3
Sergeant Major	35	4

- o1 Enlisted personnel must advance through the ranks sequentially, as outlined in the Advancement Table for Enlisted Personnel. Only the Commandant may override sequential advancement. Enlisted Advancement Ceremonies are conducted by each individual Company.

5.14. Waivers and Changes

- o1 Yearly requirements can be waived or reduced by the Commandant, if it is determined that there was a lack of resources necessary to meet the requirements.
- o2 These requirements can be changed at the decision of the Commandant, or by executive order of the General.

5.15. Utah Scots Guard Enlisted Advancement

6. Powers, Organization and Duties

6.1. Permanent Offices

o1 Office of the Permanent General

- The Office of the Permanent General of the Utah Scots Guard is held ex officio by the Sovereign Grand Inspector General or Deputy of the Supreme Council for the Orient of Utah.
- The Permanent General is entitled to all rights and privileges of the Scots Guards, may wear a uniform, and the orders of this person override all other Officers or Personnel by virtue of his position as the Supreme Authority of the Scottish Rite in this Orient.

o2 Office of the Chairman of the Membership Committee

- The Chairman of the Membership Committee may not issue orders, has no legal authority within the Battalion, is authorized but not required to wear a uniform, or a sash with rank, does rate a salute, and he and his office are to be recognized.
- The Chairman of the Membership Committee will review and may reprimand the Commandant as his Superior Officer. This office retains no vote or command authority.

o3 Office of the Commandant

- The Commandant will be elected from the body of Captains who have fulfilled all the requirements for advancement, by the Officer and Enlisted Membership of the Battalion.
- In such cases where no election can occur, the Commandant will be appointed by the Permanent General.
- The Commandant will report to the Chairman of the Membership Committee.
- Except where noted above, the Commandant is the highest authority in the Battalion, and is to be recognized as the Commander-in-Chief.
- The decisions of the Commandant are considered final in all matters.
- The process of appeal is directly to the Permanent General.
- The Commandant is authorized to give orders which are considered binding.

6.2. Temporary Offices

o1 Establishment of Offices

- Temporary Officers are appointed for the term of one year, by the Commandant. Offices may be occupied by the same Guardsman for no more than three (3) consecutive years, and no Guardsman can hold the same office for more than six (6) years total for every eight (8) years.
- Terms start and end the day following the Ceremony of Remembrance and Renewal. In cases where an Office becomes unseated, the Commandant will appoint a replacement.

o2 Battalion Executive Officer

- The Office of the Battalion Executive Officer is the second highest authority in the Battalion. Principally charged with organizing assistance for Reunions, the Battalion Executive Officer will execute all other duties as directed by higher authority or as necessary to complete the mission.
- The Battalion Executive Officer must be a 2nd Lieutenant or higher in rank.
- The Battalion Executive Officer answers directly to the Battalion Commanding Officer.

03 Battalion Adjutant

- The Battalion Adjutant is the third highest authority in the Battalion. Principally charged with the organization, scheduling and execution of Scots Guard activities at Scottish Rite Business Meetings and Reunions.
- These activities include, but are not limited to:
 - * Educational and Honor Guard and Flag Ceremonies for Scottish Rite Meetings and other such occasions as are requested and approved by the Commandant and/or Executive Officer.
 - * Scheduling/supervising Ceremonial Tylers for Reunions.
 - * Scheduling/supervising Scots Guard personnel to assist in arranging furniture of the Lodge Room for Scottish Rite Business Meetings, and act as Greeters for Business Meetings.
- The Battalion Adjutant works closely with the Scottish Rite Finance Chairman to schedule, plan and direct fund raising activities and events for the Scottish Rite Learning Centers of Utah.
- The Battalion Adjutant will execute all other duties as directed by higher authority or as necessary to complete the Mission.
- The Battalion Adjutant answers directly to the Battalion Commanding Officer.

04 Battalion Sergeant Major

- The Battalion Sergeant Major is principally charged with the ceremonies, ceremonial proficiency, training, education, drill and ceremonial articles and affects of the Battalion.
- The Battalion Sergeant Major is give authority over Enlisted Personnel with principal interest in maintaining and allocating resources as designated by the Battalion Executive Officer.
- The Battalion Sergeant Major must be a Sergeant Major.

05 Battalion Master Sergeant

- The Battalion Master Sergeant is charged with maintaining Battalion finances and records, and will execute all other duties as directed by higher authority.
- The Battalion Master Sergeant is given authority over Enlisted Personnel with principal interest in maintaining and allocating resources as designated by the Battalion Adjutant.
- The Battalion Master Sergeant must be a Sergeant Major, or a Master Sergeant.

6.3. Formations

- 01 The regular stated formation of the Utah Scots Guard shall be the third Thursday of the Month, one hour prior to the Scottish Rite, Orient of Utah, Valley of Salt Lake, Dinner and Business Meeting.
- 02 Formations may be called at the discretion of the Commandant, or appointed authority.
- 03 Formations will be conducted in accordance with the outlines laid out in the Book of Words and Forms.

6.4. Taxes and Levies

- 01 The Battalion shall levy upon each Guardsman an annual fee of \$32.
- 02 Retired personnel are not considered in assessing this tax.
- 03 Two years delinquency in payment will result in summary dishonorable discharge.

6.5. Prohibitions

- 01 Use of Masonic Name of Emblems, and Use of Scots Guard Name and Emblem
 - No member of this organization shall use, or be party to the use, of such instruments listed above, as a part of title or designation of any business, firm, concern, company, associations or enterprise without the direct authority of the Commandant or Superior Power.
- 02 Discussions
 - The body being a Masonic Organization is limited to all topics of discussion as deemed by traditional Masonic restrictions.
- 03 Begging Letters
 - No member of this organization shall give a certificate whereby any Mason or Member of this organization may, in any manner, apply for relief to this body.
- 04 Processions
 - This body is authorized to participate in public processions at the discretion of the Permanent General.
- 05 Lending Money
 - This body shall not lend money to any member or Mason.

6.6. Companies

- No companies have been constituted.

7. Uniform Regulations

7.1. Military Dress

01 Formal Dress

- The Formal Dress Uniform consists of a Black Tuxedo of any style of cut that is well-tailored. Black Tie; Sash; 32° Cap, Sword (as per Rank); Patent Leather, Corfam®, or highly polished leather low quarters; medals; No other pins (lapel or otherwise), adornments, or decorations are permitted with the exception of other official Masonic Medals or Awards, or Medals and Awards received during honorable Military service. The wearing of Kilts is prohibited, but trews are allowed.

02 Evening Dress

- The Evening Dress Uniform is identical to the Formal Dress Uniform except that it is white tie with white gloves and vest. Tails or Prince Charlie Jackets are acceptable and highly recommended. The wearing of Kilts is permitted. Trews are not permitted. If Kilts are worn, traditional highland shoes may be substituted for low quarters.

03 Business

- The Business Uniform is identical to the Formal Dress Uniform, replacing Tuxedo with a well tailored standard business suit, single or double breasted, Jacket or Coat, with tie, and slacks is also acceptable provided that suitable attention is paid to tailoring, color, and balance. No jacket that is the authorized uniform of another Masonic body is permitted.
- Swords, Medals and Awards are not permitted with the Business Uniform.
- Rank insignia are worn upon the Sash.
- Unless otherwise noted, the Uniform of the Day will be the Business Uniform.